

24STCV12256 24STCV12256

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-24

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Case Number: 24STCV12256 Hearing Date: September 24, 2026 Dept: 734

Defendant Hyder & Company

applies ex parte for an order specially setting its eight motions for summary judgment during the period of December 14, 2026 through December 18, 2026, or in the alternative, continuing the trial date.

The Court has considered the application and finds the matter suitable for decision in chambers without argument.

As Defendant correctly

states, a party that timely files a motion for summary judgment has a right for the motion to be heard in advance of trial, such that a trial continuance must be granted if the Court's calendar does not permit an earlier hearing date. (Sentry Ins. Co. v. Superior Court (1989) 207 Cal.App.3d 526, 629; but see Robinson v. Woods (2008)

168 Cal.App.4th 1258, 1267-68 ("Defendants noticed their motion for hearing within 30 days of the trial date without first obtaining a determination of good cause from the trial court. (See § 437c, subd. (a).) Unless and until the trial court found good cause, the notice of the hearing was invalid.

The party opposing a summary judgment motion should not be under an obligation to respond on the merits—and risk wasting its resources—given that the trial court may ultimately decide that good cause does not exist.".) The eight motions at issue have been filed sufficiently in advance of the January 19, 2027 trial date to be heard on 81 days statutory notice at least 30 days before trial. (Code Civ. Proc. § 437c(a)(2),

(3).) The Court cannot advance the

hearings on Defendant's motions that were reserved for January and February 2027. Thus, under Sentry Insurance, the Court must continue the trial. The Court

therefore vacates the January 4, 2027 final status conference and January 19, 2027 trial dates, and sets a trial setting conference for February 23, 2027 at

8:30 a.m. The discovery and motion

cutoffs are not extended, and shall remain calculated by reference to the

January 19, 2027 trial date unless the parties obtain an order extending discovery.

Moving party to give notice.